

		<u>Vacating of Dismissal</u> Plaintiff requests that the court vacate the dismissal of Defendants Mehul Ahir and Ketty Ahir pursuant to Civil Procedure Code section 664.6(f), if necessary. However, nothing in Section 664.6(f) allows for the vacating of a dismissal. In any case, Plaintiff has not dismissed Defendants Mehul Ahir and Ketty Ahir from this action. Therefore, judgment may be entered against them, once Plaintiff has dismissed Defendants Does 1-10 so that there shall be only one judgment in this action. Plaintiff shall give notice of this ruling.
5	Escamilla vs. Suchard 30-2022-01282888	<u>Motion for Entry of Judgment</u> Plaintiff Daniel Escamilla's Motion to Enforce Settlement Agreement Pursuant to Code of Civil Procedure s 664.6 and for Attorney's Fees in the Amount of \$3,200 is GRANTED. The court ORDERS that Judgment shall be ENTERED in favor of Plaintiff Daniel Escamilla and against Defendant Talmor Suchard in the amount of \$29,100 plus \$3,200 in reasonable attorney's fees. Plaintiff Daniel Escamilla is ORDERED to prepare a proposed judgment consistent with this ruling and serve it upon Defendant Talmor Suchard and submit it to the court pursuant to Rules of Court rule 3.1590(h). The Court FINDS good cause to allow Plaintiff Daniel Escamilla 30 days from the date of this ruling to prepare, serve, and submit the proposed judgment. The court will not enter judgment until Defendants Does 1-50 have been dismissed from this action. <u>Pending Motion</u>

		Plaintiff Daniel Escamilla moves for an order to enter judgment against Defendant Talmor Suchard pursuant to the Settlement Agreement dated September 18, 2025. <u>Standard for Entry of Judgment</u> Civil Procedure Code section 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).) As the Court of Appeal has explained: The purpose of section 664.6 is "to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." "If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement." (<i>Greisman v. FCA US, LLC</i> (2024) 103 Cal.App.5th 1310, 1321, quoting <i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 809; see also <i>Eagle Fire and Water Restoration, Inc. v. City of Dinuba</i> (2024) 102 Cal.App.5th 448, 457 ["section 664.6 provides an expedited procedure for enforcing the parties' settlement agreement"]; <i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182 ["Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement."].) Pursuant to Section 664.6, "even though a settlement may call for a case to be dismissed, or the plaintiff may dismiss the suit of its own accord, the court may nevertheless retain jurisdiction to enforce the terms of the settlement, until such time as all of its terms have been performed by the parties, <i>if the parties have requested this specific retention of jurisdiction.</i>" (<i>Wackeen v. Malis</i> (2002) 97 Cal.App.4th 429, 439, italics original.) However, "[a] trial court cannot enforce a settlement under section 664.6 unless the trial court finds the parties expressly consented . . . to
--	--	--

		the material terms of the settlement.” (<i>Bowers v. Raymond J. Lucia Companies, Inc.</i> (2012) 206 Cal.App.4th 724, 732.) Thus, before granting a motion to enforce a judgment, the court must determine “whether the parties entered into a binding settlement agreement of all or part of a case.” (<i>In re Marriage of Assemi</i> (1994) 7 Cal.4th 896, 911.) In making this determination, “a trial court should consider whether (1) the material terms of the settlement were explicitly defined, (2) the supervising judicial officer questioned the parties regarding their understanding of those terms, and (3) the parties expressly acknowledged their understanding of and agreement to be bound by those terms.” (<i>Ibid.</i>) However, “the terms of a contract need not be stated in the minutest detail,” because the trier of fact can consider extrinsic evidence to interpret the terms of the contract. (<i>Robinson & Wilson, Inc. v. Stone</i> (1973) 35 Cal.App.3d 396, 407.) The court has the power to interpret settlement terms, but not to add material terms that were not agreed to by the parties. (See <i>Steller v. Sears, Roebuck and Co.</i> (2010) 189 Cal.App.4th 175, 180; <i>Leeman v. Adams Extract & Spice, LLC</i> (2015) 236 Cal.App.4th 1367, 1374 [“While the court may interpret the terms of the parties’ settlement agreement, ‘nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed.’”], quoting <i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 810.) In addition, the court may determine disputed factual issues that have arisen regarding the settlement agreement, (see <i>Fiore v. Alvord</i> (1985) 182 Cal.App.3d 561, 566), and in effect, may conduct a mini-trial on the enforceability of the settlement, (<i>Corkland v. Boscoe</i> (1984) 156 Cal.App.3d 989, 994.) “[T]he trial court may consider declarations of the parties and their counsel, any transcript of the stipulation orally presented and recorded by a certified reporter, and any additional oral testimony.” (<i>In re Marriage of Assemi, supra</i>, 7 Cal.4th at p. 911; see also <i>Eagle Fire and Water</i>
--	--	---

		<i>Restoration, Inc. v. City of Dinuba</i> (2024) 102 Cal.App.5th 448, 469 [“In that capacity, the trial judge may receive evidence such as oral testimony and declarations, consult his memory if he heard the settlement, determine disputed facts, apply governing law, and enter the terms of a settlement agreement as a judgment.”].) <u>Existence and Validity of Settlement Agreement</u> Here, Plaintiff produced evidence that Defendant’s Counsel explicitly agreed to a settlement via text message, wherein his client agreed to pay Plaintiff \$21,900.00, with \$7,500.00 as an initial down payment, and with the remaining balance to be paid over six months. (Anderson Decl., ¶¶ 3-5; Exh. A.) In addition, the intent of the parties is shown in the Settlement Agreement and Mutual Release that Defendant’s Counsel drafted, in which it was agreed that, should Defendant fail to comply with this payment arrangement, Plaintiff would then be entitled to a judgment of \$29,100.00, less credit for payments made, and with 10% simple interest on the unpaid balance. (Anderson Decl., ¶¶ 7, 11; Exh.s B-C.) Further, Defendant’s Counsel filed the Notice of Settlement of Entire Case on June 5, 2025. (Anderson Decl., ¶ 6; see ROA #307.) In addition, Defendant’s Counsel appeared before the court on November 20, 2025, wherein he again confirmed that the parties had reached a settlement and that a settlement agreement had been drafted, although it remained unsigned. (See ROA #316.) Finally, Plaintiff presented evidence he agreed to the settlement, and he signed the settlement agreement, as well as the Stipulation for Entry of Judgment. (Anderson Decl., ¶¶ 7-8, Exh.s B-C; Escamilla Decl., ¶¶ 6-9.) This evidence is sufficient to show the existence of a valid settlement agreement. Defendant, however, contends that his attorney lacked authority to settle the case and without his specific authorization and that he never signed the settlement agreement. Nonetheless, a settlement agreement entered into by an attorney who represents the party is
--	--	---

	considered “signed by the party” and can be enforced under Section 664.6. (See Code Civ. Proc. § 664.6, subd. (b)(2); <i>Greisman v. FCA US, LLC</i> (2024) 103 Cal.App.5th 1310, 1324 [express, on-the-record assent of [plaintiff], her attorney, and defendants’ attorney to settle the case was sufficient to satisfy the requirements of section 664.6].) Here, there is no evidence from Defendant’s Counsel stating that he lacked authority to bind Defendant when he stated repeatedly on the record that there was a settlement. (See ROA #307, #3165.) The cases cited by Defendant were all decided before Section 664.6 was amended to allow counsel’s assent to bind the client for purposes of Section 664.6 or are inapposite. In fact, one case cited by Defendant, <i>W. Bradley Electric, Inc. v. Mitchell Engineering</i>, supports the Plaintiff’s argument. In that case, defendant claimed its attorney did not have express authority to enter into a settlement, or to dismiss the cross-complaint but the Court of Appeal held that, while counsel may not have obtained the requisite express authority for the settlement and dismissal, the client’s failure to lodge an objection and promptly take steps to rectify the matter constituted a ratification that precluded relief. (<i>W. Bradley Electric, Inc. v. Mitchell Engineering</i> (2024) 100 Cal.App.5th 1, 15-16.) In <i>W. Bradley Electric, Inc. v. Mitchell Engineering</i>, the parties reached a settlement in June of 2025, yet the only evidence regarding counsel’s alleged lack of authority did not reveal itself until defendant’s April 22, 2026 declaration. As in <i>W. Bradley Electric, Inc. v. Mitchell Engineering</i>, Defendant’s failure to “promptly take steps to rectify the matter constitutes a ratification that precludes relief.” (<i>Id.</i> at p. 16.) Finally, Plaintiff has shown that he is entitled to judgment in the amount of \$29,100 and reasonable attorney’s fees in the amount of \$3,200. (See Escamilla Decl., ¶¶ 10-12; Parker-Hotchkiss Decl., ¶¶ 6-8.) Therefore, the court will grant the motion.
--	---

		Plaintiff shall give notice of this ruling.
6	Dugar vs. Estate of Joann Kelperis 30-2025-01520975	<u>Demurrer</u> Defendant Estate of Joann Kelperis' Demurrer to Complaint is SUSTAINED with 15 days leave to amend as the entire Complaint and as to the 5th through 9th Causes of Action of the Complaint. Defendant Estate of Joann Kelperis' Request for Judicial Notice is DENIED. (See Cal. Rules of Court, rule 3.113(l) ["Any request for judicial notice must be made in a separate document listing the specific items for which notice is requested and must comply with rule 3.1306(c)."]; Cal. Rules of Court, rule 3.1306(c) ["A party requesting judicial notice of material under Evidence Code sections 452 or 453 must provide the court and each party with a copy of the material."].) <u>Pending Motion</u> Defendant Estate of Joann Kelperis demurs to the entire Complaint filed by Plaintiff Lanny Jay Dugar and to the 5th through 9th Causes of Action of Complaint. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters